

FL-23-003137 CERVANTES VS CERVANTES

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-08-25

Motion: Petitioner's Request for Order re Enforce Judgment, etc.—HEARING REQUIRED. Respondent filed a Responsive Declaration and alleges that, due to an adverse change in financial circumstances, he lacks the ability to comply with the terms of the parties' final judgment that Petitioner seeks to enforce. Neither party has filed and served a current Income and Expense Declaration as required when the matter concerns property, fees or support. (Cal. Rules of Ct., rule 5.92.) That said, when it comes to enforcement of judgment, the Court has no authority to modify or rewrite the terms of the judgment; the Court's only role, absent a motion to set aside, is to enforce the judgment "as-is." (Marriage of Thorne & Raccina (2012) 203 Cal.App.4th 492, 499; see, Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 17-E, § 17:340 et seq. ["after the time for appeal has run, the parties cannot relitigate the division of property disposed of by a final judgment. [Marriage of Brown (1976) 15 C3d 838, 851, 126 CR 633, 641, fn. 3; see Marriage of Stier (1986) 178 CA3d 42, 53-54, 223 CR 599, 606-608—no jurisdiction to act on request to 'modify' 9-year-old final judgment re amount owing pursuant to CP division of military retirement pay],” emphasis added.) Respondent is represented by counsel but no authority to the contrary has been offered and as Respondent's declaration offers no other rebuttal or opposition to the Petitioner's order request, absent testimony or evidence establishing good cause to the contrary, the Court is inclined to grant the motion. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: THERE ARE NO TENTATIVES. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: 3b58799ca22e66b4035d90c01126e778b56492d7ea0d0bb864d6c03ad5f20ff4

FL-23-003137 – CERVANTES VS CERVANTES

Petitioner's Request for Order re Enforce Judgment, etc.—HEARING REQUIRED.

Respondent filed a Responsive Declaration and alleges that, due to an adverse change in financial circumstances, he lacks the ability to comply with the terms of the parties' final judgment that Petitioner seeks to enforce. Neither party has filed and served a current Income and Expense Declaration as required when the matter concerns property, fees or support. (Cal. Rules of Ct., rule 5.92.) That said, when it comes to enforcement of judgment, the Court has no authority to modify or rewrite the terms of the judgment; the Court's only role, absent a motion to set aside, is to enforce the judgment "as-is." (Marriage of Thorne & Raccina (2012) 203 Cal.App.4th 492, 499; see, Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 17-E, § 17:340 et seq. ["after the time for appeal has run, the parties cannot relitigate the division of property disposed of by a final judgment. [Marriage of Brown (1976) 15 C3d 838, 851, 126 CR 633, 641, fn. 3; see Marriage of Stier (1986) 178 CA3d 42, 53-54, 223 CR 599, 606-608—no jurisdiction to act on request to 'modify' 9-year-old final judgment re amount owing pursuant to CP division of military retirement pay],” emphasis added.) Respondent is represented by counsel but no authority to the contrary has been offered and as Respondent's declaration offers no other rebuttal or opposition to the Petitioner's order request, absent testimony or evidence establishing good cause to the contrary, the Court is inclined to grant the motion.

The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

THERE ARE NO TENTATIVES.

Administrative

[ADA Accommodations](#)

[Locations and Contact Info](#)

[Privacy Policy](#)

[Attorney Resources](#)

[Judicial Council Forms](#)

[Court Calendars](#)

[California Court](#)

[Self-Help Center](#)

[California Judicial Branch](#)

[Public Resources](#)

[Court Holidays](#)

[Stanislaus County](#)

[Employee Access](#)

[Outlook](#)

[Share Point](#)

[Superior Court of California
County of Stanislaus](#)

[Judicial Branch of California](#)

[Privacy](#)

[Terms of Use](#)

